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Libyan politics

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The case of the Carnation Milk, bringing an Ajdabiyan policeman into conflict with the Dairy Products Committee in Tripoli, threatened to raise the issue of local sovereignty in an acute form – one, that is, which demanded a decision by independent judges.¹⁴ For the most part people did not take the question seriously; it was the characteristic passion of young men in the grip of recent learning, or policemen temporarily possessed by the Libyan officials' variety of amok. Most Ajdabiyans, most Kufrans, thought that government took decisions and exercised authority independently of their will. They ignored the prior consultations, the use of friendship between secretariat officials and local chairmen which ensured that the business of government was carried on in ways which often responded to local needs.

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They ignored, too, the more subtle ways in which Tripoli set the terms of discussion. The shopkeeper who berated the regime for its brylcream policy accepted its definition of him as a capitalist, an entrepreneur: that did not seem justified by any sensible criterion of capitalism. Zuwaya exchanges, methods of saving, accounting and investing were far removed from those which are used to scourge and oppress workers. Amongst themselves the Zuwaya did not divide into classes, nor did any inter-tribal division mark a class division. Zuwaya certainly exploited foreign labour (the general tendencies of ethnic prejudice reinforced by the characteristic labour market of hydrocarbon society). And the central government's socialism, its restriction of socialist rights to Libyan nationals, set the seal on the discrimination between foreign and national labour because it encouraged Libyan employers to employ foreigners. ■ 176 The division between labour and capital was therefore a nationalist and ethnic one rather than a class one, even though Zuwaya cast themselves in the role of capitalist entrepreneurs,

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for example when they defended free markets against state-controlled ones.

That was because Tripoli settled the terms of the defence; and those savoured jokes, the involuted ironies of domestic debate were as much influenced by Tripoli as the more openly controlled agenda of the local Assembly.

14. Lawyers and judges in the first ten years of the regime acted independently when they could. They were, however, subjected to pressures. A judge, for example, once recounted in great detail the attempts of an army officer to influence the decision in a case about to come before his court. But that was unofficial, the officer attempting to use his position to gain private advantage. In the face of judicial reluctance to meet the desires of members of the government in state trials, the regime, from a very early date, took to setting up special courts to re-hear the cases of people deemed to have been treated too leniently. And in 1978-9 they began an attack on the professions, claiming they were unjust and oppressive (Bleuchot, 1983: 140-1).

Human Relations Area Files

755 Prospect Street

New Haven, CT 06511

General Inquiries: ✉ hraf@yale.edu

Issues and Bugs: ✉ hraf-support@yale.edu



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